

Online Complaint Form



COMPLAINT ABOUT A CALIFORNIA JUDGE, COURT COMMISSIONER OR REFEREE

Confidential under California Constitution Article VI, Section 18, and Commission Rule 102

For instructions on filling out and submitting this form, please visit the commission's [Online Complaint Instructions webpage](#).

Date Submitted
7/22/2024 8:48 PM

Entry Number
8,050

* Indicates a required field

Your information

Complainant 1

Your name
Kostiantyn Mars

Your pronouns (e.g., he/him; she/her; they/them)

Your email
constantine.mars@gmail.com

Your telephone number
(408) 518-0088

Your address
PO Box 8081, San Jose, California 95155

Judge and conduct

Judge 1

Name of judge
Stephen Lowney

Or Name of court commissioner or referee

Court Level
Superior Court

Court of Appeal District

County
Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

02/07/2024

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

On 02/07/2024 suspected of bribery crook ("judicial officer") Stephen Lowney refused to hear matter of custody review, and denied evidentiary hearing - despite all the evidence, all supervised reports, and all video evidence of recent incident when biological mother was beating my son on his birthday, was filed with the court and emailed to Department 79 for review on current hearing 02/07/2024.

I respectfully attach supervised reports, DVRO declaration and other evidence to confirm that Lowney had opportunity to hear matter, and there were THREE MATTERS related to custody review (DVRO because mother was beating my son on his birthday 11/23/2023), reconsideration harmful custody orders of disqualified crook Andrea Flint obtained by fraud on court 06/29/2023, and custody review by itself (rescheduled already about 3 or 5 times by Flint and Lowney, but never heard).

Refusal to hear matter and threats to put me in jail if I will not abandon my son and will not give up passport and all documents of my son WERE UNDENIABLE CONFIRMATION OF BRIBE, RECEIVED BY LOWNEY FROM NANCY ROBERTS IN JANUARY, ON HIS FIRST MONTH OF ASSIGNMENT IN DEPARTMENT 79.

LOWNEY WAS THREATENING ME BY JAIL, USED THREATS AND COERCION TO FORCE ME TO ABANDON MY SON, GIVE UP PASSPORT AND ALL DOCUMENTS OF MY SON - THE SAME SHIT AS PREVIOUS DISQUALIFIED CROOKS ANDREA FLINT AND JAMES TOWERY DID, AFTER RECEIVING BRIBES FROM NANCY ROBERTS.

Dear Commission on Judicial Performance and Chief Justice Patricia Guerrero,
I respectfully ask you for help to obtain OFFICIAL CONFIRMATION OF DISQUALIFICATION AND NULLIFICATION OF ALL ORDERS OF THREE DISQUALIFIED BRIBED CROOKS STEPHEN LOWNEY, ANDREA FLINT, AND JAMES TOWERY.

I also respectfully ask your help to ensure that Presiding Judge Honorable Beth McGowen will not be allowed this time to conceal disqualification of bribed crook Stephen Lowney, and his disqualification will be OFFICIAL AND PUBLIC.

Because recent acts of concealing disqualifications of two previous disqualified bribed crooks Andrea Flint and James Towery by Beth McGowen led to unlawful arrest of me for violation of voided DVRO signed by Flint after disqualification, and unlawful imprisonment of my son for two years in hands of schizophrenic mother, who blocked all our contact, and continues beating my son even on his birthday, even while video recorded - motivating it by "court orders" obtained from disqualified bribed crooks Flint and Towery, which had no judicial power - though, due to unlawful activity of Beth McGowen, those

orders were never officially nullified, despite that had to happen in 30-45 days after first Statement of Disqualification was filed with the court.

Dear Commission on Judicial Performance and Chief Justice Patricia Guerrero, please help to obtain OFFICIAL CONFIRMATION OF DISQUALIFICATION AND NULLIFICATION OF ALL ORDERS OF THREE DISQUALIFIED BRIBED CROOKS STEPHEN LOWNEY, ANDREA FLINT, JAMES TOWERY.

Appreciate your prompt attention to this urgent matter.
Thank you

File Upload

Evidence for Complaint 2024-02-07 - Denied Custody Review.pdf

2024-02-20 Disqualification against Lowney.pdf

2023-11-13 Disqualification against Flint.pdf

2023-11-30 Disqualification against Flint Amended.pdf

Judge 2

Name of judge

Andrea Flint

Or Name of court commissioner or referee

Court Level

Superior Court

Court of Appeal District

County

Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

06/29/2023, 02/07/2024

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

On 02/07/2024 suspected of bribery crook ("judicial officer") Stephen Lowney refused to hear matter of

custody review and threatened to put me in jail to force me to abandon my son and "transfer custody", passport and all documents of my son to his schizophrenic mother, who was recently beating my son on his birthday 11/13/2023.

Orders that Lowney tried to enforce by threatening to put me in jail, were exactly the same as disqualified bribed crook Andrea Flint ordered on 06/29/2023 - driven by bribe from Nancy Roberts and her client Hanna Mars. Hanna's father, well known Ukrainian criminal Serhii Nahorny, having extensive experience in bribing judges and government officials in Ukraine, before kidnapping of my son by his daughter in September 2022 threatened me to "bribe anybody who we need to take your child to Ukraine and ensure that he will grow there not knowing his father".

Serhii's daughter Hanna said similar threat - to "kill you mom, make you suffer with dying mom on your hands, and abduct and bury your son in Ukrainian soil, so you will never see him again".

Hanna was a bit more aggressive, due to her inflamed schizophrenia, from which she was on treatment for couple of years.

Hanna kidnapped my son from school on 09/15/2022 using fraudulent DVRO signed by disqualified crook James Towery, who was disqualified on another case and didn't make it even to the first hearing on our case.

Disqualified bribed crook Andrea Flint falsified court records on 06/29/2023, removed signed emergency screener recommendations, refused to hear matter of custody review (at that moment schizophrenic mother kidnapped my son to undisclosed location and blocked all our contact, even phone calls).

Order 06/29/2023, obtained by fraud on court committed by Andrea Flint, was used by Hanna Mars to block all our contact, call police on me and request them to arrest me when I greeted my son Max Mars with birthday on 11/23/2023.

Police explained schizophrenic Hanna Mars that there is no order which I violated - and they cannot just arrest me for greeting my son with birthday.

Therefore, extremely aggressive schizophrenic Hanna Mars, after beating my son Max on his birthday (which was video recorded), filed DVRO against me - which was signed by disqualified crook Andrea Flint on 11/28/2023, two weeks after Disqualification of Flint started (Statement of Disqualification was filed 11/13/2023).

The very fact that disqualified judge violated CCP 170.1, 170.3, 170.4 and ruled on non-default, serious matter, while having no judicial power to act on this case, confirms extreme corruption and complete ignorance of law in Santa Clara County Superior Court.

As later was discovered, Presiding Judge Beth McGowen refused to provide official confirmation of disqualification of Andrea Flint, refused to nullify her orders, and even worse - made it look like "regular rotation" of Flint to another department.

As later was discovered, notice of selection of judge to hear matter of disqualification was never sent to Judicial Council, which violates procedures of CCP 170.3, 170.4.

Not talking about RULING AGAINST CHILD'S SAFETY AND BEST INTEREST, COMPLETELY IGNORING ALL EVIDENCE AND WITNESS STATEMENTS, FALSIFYING COURT RECORDS, REFUSING TO HEAR MATTER, AND COMMITTING SEVERE REPETITIVE FRAUD ON COURT - SOLELY IN FAVOR OF PARTY WHICH IS SUSPECTED IN BRIBING CROOK FLINT. (which directly violates the very Canons of Judicial Ethics, which prescribe judicial officer to recuse themselves in case of any conflict of interest, because judicial officer must be impartial by definition).

Dear Commission on Judicial Performance and Chief Justice Patricia Guerrero,
I respectfully ask you for help to OFFICIALLY CONFIRM DISQUALIFICATION AND NULLIFICATION OF ALL ORDERS OF ANDREA FLINT AND ALL THREE DISQUALIFIED CROOKS FROM THIS CASE: STEPHEN LOWNEY, ANDREA FLINT AND JAMES TOWERY.

I also kindly ask to transfer this case to another department (or better - another court) to get away from uncontrollable outburst of organized crime under label of law, which Presiding Judge Beth McGowen is nurturing during already many years.

Appreciate your prompt attention to this urgent matter.
Thank you

File Upload

Evidence for Complaint 2024-02-07 - Denied Custody Review.pdf

2023-06-29 FRAUD BY FLINT - Ordered me to abandon my son Max, and give up passport and all documents of my son.pdf

2022-09-13 FRAUD BY TOWERY - Initial DVRO signed by Towery (bw).pdf

2024-02-07 FRAUD BY LOWNEY - Threatened to put me in jail to force me to abandon my son and give up passport and all documents.pdf

2024-02-20 Disqualification against Lowney.pdf

2023-11-13 Disqualification against Flint.pdf

2023-11-30 Disqualification against Flint Amended.pdf

PAJAR Response - Flint.pdf